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A REVIEW OF MICHAEL IGNATIEFF'S
HUMAN RIGHTS AS POLITICS AND IDOLATRY

A review of Michael Ignatieff's *Human Rights as Politics and Idolatry*. Princeton: Princeton, U.P., 2001.

Some contemporary human rights theorists attempt to bypass many of the historical problems associated with justifying human rights by avoiding the metaphysical and ontological arguments for human rights that figured so prominently in modern rights theory. To be sure, Michael Ignatieff takes this approach to the problem of grounding human rights in *Human Rights as Politics and Idolatry*. According to Ignatieff, all metaphysical and ontological justifications for human rights are doomed to fail because they unwittingly undermine our commitments to the responsibilities entailed by human rights. In order to illustrate this, he sets out to show that metaphysical and ontological arguments are unclear and controversial. As Ignatieff explains it, metaphysical justifications for human rights are unclear because "they confuse what we wish [humans] to be with what we empirically know them to be."¹ This leads to controversy regarding human rights,² which, in turn, fragments our commitment to the responsibilities entailed by human rights.³ Similarly, although he does not say this explicitly, ontological arguments for human rights are unclear because they often presume to justify rights that exist independently of the political institutions that are responsible for creating them. This leads us into the controversy regarding the proper ordering of rights. Either way, according to Ignatieff, those who attempt to ground human rights in metaphysical and ontological arguments, or, rather, *philosophical idolatry*, unwittingly undermine our commitment to the responsibilities entailed by human rights.

According to Ignatieff, instead of attempting to ground human rights in metaphysical and ontological justifications, we should attempt to ground human right in historical and prudential arguments that highlight what human rights actually do for people.⁴ In an effort to do this, he articulates a justification for human rights that is grounded in history and prudence. He argues that history teaches us that when humans lack basic protections for their lives, bodily integrity, and agency, they will be at risk of suffering grave wrongs.⁵ Nazi

1 Michael Ignatieff, *Human Rights as Politics and Idolatry*, 54.

2 Ibid.

3 Ibid.

4 Ibid., 54-57.

5 Ibid.

Germany is an example of this. In addition, he argues that prudence teaches us that when humans have basic protections they are better able to prevent others from infringing on their lives, bodily integrity, and so on.⁶ Nations in which human rights are respected are examples of this. For these reasons, it is in the prudential interest of humans to create and adhere to the demands of human rights.⁷ Therefore, Ignatieff concludes that humans are prudentially obliged to create and adhere to the demands of human rights, even if it requires using *politics* to coerce belligerent states into compliance.

What I find philosophically objectionable about Ignatieff's justification for human rights is that it relies on the coercive force of possible infringements on our lives in order to prudentially oblige us to create and adhere to the demands of human rights. In this way, whenever the coercive force of possible infringements is in favor of respecting human rights Ignatieff is able to argue that it is in the prudential interest of humans to create and adhere to the demands of human rights. Unfortunately, however, Ignatieff ignores the fact that coercive force can swing both ways. Therefore, when the coercive force of possible infringements is opposed to respecting human rights he would be obliged to argue that is not in the prudential interest of humans to create or adhere to the demands of human rights. So, ironically, Ignatieff's justification for human rights can be used to undermine human rights. For this reason, it is philosophically problematic.

Notwithstanding this problem, what is refreshing about Ignatieff's approach is that it highlights practical reasons why it is necessary for humans to work together to construct their domestic and international practices in such a way that respects human rights. Even more, Ignatieff buttresses his practical approach to human rights with historical evidence of how wrong human societies can go in the absence of human rights. Even today, sixty years later, the example of Nazi Germany is still effective for achieving this purpose. To be sure, in light of the abuses in Cambodia, Chile, Uganda, Iraq, Yugoslavia, Rwanda, and the Sudan, Ignatieff's point regarding the practical importance of universal human rights is well taken.

ERIC SMAW received his Ph.D. in philosophy of law and human rights from the University of Kentucky in May of 2006. After receiving his Ph.D., Dr. Smaw pursued post-doctoral studies at the University of Massachusetts where we worked on several articles in the areas of jurisprudence and human rights, including "An Analysis of the Philosophy of Universal Human Rights: Hobbes, Locke, and Ignatieff," "Thomas Hobbes's Justification for the Supreme Human Right," and "Reviving John Locke's Philosophy of Human Rights in an Age of Terrorism." His most recent project is a book tentatively entitled *Human Rights, World Government, and the End of Poverty*.

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⁶ Ibid., 57.

⁷ Ibid., 55.